



U.S. Department
of Transportation

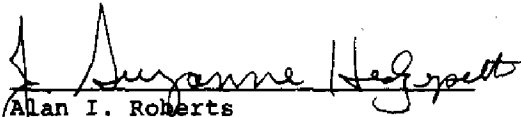
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9765 (EXTENSION)
ORIGINAL September 15, 1987

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9765 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to October 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Sgt 
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 13 1991

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

3M Transportation
St. Paul, MN

January 23, 1991



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9765

SEP 15 1987

1. 3M, St. Paul, Minnesota, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a certain flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of ethylene oxide, classed as a flammable liquid, contained in aluminum cartridges and cushioned in molded expanded polystyrene trays, overpacked in a DOT 12B15 corrugated fiberboard box, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on 3M's application dated April 9, 1987, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Ethylene oxide, classed as a flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Ethylene oxide.

5. REGULATION AFFECTED. 49 CFR 173.124(a)(3).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is DOT Specification DOT 12B15 corrugated fiberboard box with inside aluminum cartridges (containing no more than 135 grams of material), cushioned top and bottom by expanded polystyrene trays, packed no more than 12 cartridges to a box. Completed package, closed as for shipment, must be capable of satisfactorily withstanding the performance tests prescribed in ASTM Test Method 4169, Test Intensity Level II, Cycle 3 (using the small package shipping option), and as documented in applicant's Package Test Report dated January 23, 1987.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel and aircraft, used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (or OHMT) as soon as practicable.

10. EXPIRATION DATE. July 15, 1989.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

SEP 15 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U.S. Department of Transportation,
Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA